

25SMCV05825 25SMCV05825

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Case Number: 25SMCV05825 Hearing Date: July 22, 2026 Dept: 205

Superior Court of
California

County of Los
Angeles – West District

Beverly Hills
Courthouse / Department 205

TONOAH ALEXANDER,

Plaintiff,

v.

BENJAMIN LAMINE MOHAMMED, et al.,

Defendants.

Case No.: 25SMCV05825

Hearing Date: July 22,
2026

[TENTATIVE] ORDER

RE:

DEFENDANT LAMIA BELHIBA'S MOTION TO QUASH SERVICE OF SUMMONS

BACKGROUND

On November 10, 2025, Plaintiff Tonoah Alexander filed a complaint against Defendants Mohammed S. Ben Lamine, individually and as a trustee of The Mohammed S. Ben Living Trust, who was improperly sued as Benjamin Lamine Mohammed and Benjamin Mohammed, and Lamia Belhiba, who was improperly sued as Lamine Belhiba.

The case arises from an alleged breach of oral contract and fraudulent quitclaim deed for the property located at 4017 Beethoven St, Los Angeles, CA 90066 ("Property"). According to Plaintiff, on March 31, 2006, she and Defendants entered into an oral agreement to purchase the property with the understanding that Plaintiff would be entitled to a 50% ownership interest. Plaintiff alleges that she took out the sole mortgage loan to purchase the property but learned in 2023 that Defendants had removed her name from the title. On March 25, 2024, Plaintiff discovered that Defendants had allegedly executed a fraudulent quitclaim deed transferring her ownership interest to them.

Plaintiff alleges the following four causes of action against Defendants: (1) partition of real property; (2) quiet title; (3) fraud; and (4) breach of contract.

This hearing is on Defendant Lamia Belhiba's ("Belhiba") Motion to Quash Service of Summons, filed on June 22, 2026. Belhiba argues that Plaintiff's Proof of Service filed on February 9, 2026 is improper because she was not in the United States on November 28, 2025 as she had departed the country on May 3, 2024, she has never resided at the property, has been a Tunisian citizen and resident since 2003, and was never personally served with the Summons and Complaint. Plaintiff filed an untimely opposition on July 15, 2026, five court days before this hearing. Pursuant to Code of Civil Procedure section 1005, subdivision (b), "[a]ll papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) Per the Code, Plaintiff's last day to file an opposition was July 9, 2026; Plaintiff did not file her opposition until July 15, 5 court days before the hearing and the due date of a reply. Accordingly, the Court does not consider the opposition due to the untimely filing.

LEGAL
STANDARD

“A

defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

(Code Civ. Proc., § 418.10, subd. (a)(1).)¿A defendant has 30 days after the service of the summons to file a responsive pleading, or 40 days if service was effectuated by substitute service. (Code Civ. Proc., § 412.20, subd. (a)(3); Code Civ. Proc., § 415.20, subd. (b).)¿

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motion to quash service of summons lies on the ground that the court lacks personal . . . jurisdiction over the moving party.”¿(Greener v. Workers' Comp. Appeals Bd.¿(1993) 6 Cal.4th 1028, 1036, citing to Code of Civil Procedure § 418.10.) “A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of the United States.” (Code Civ. Proc., § 410.10.) “The exercise of jurisdiction over a nonresident defendant comports with these Constitutions if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate traditional notions of fair play and substantial justice.” (Elkman v. National States Ins. Co. (2009) 173 Cal.App.4th 1305, 1313.) “An essential criterion in all cases is whether the ‘quality and nature’ of the defendant’s activity is such that it is ‘reasonable’ and ‘fair’ to require him to conduct his defense in that state.” (Kulko v. Superior Court of California in and for City and County of San Francisco (1978) 436 U.S. 84, 92.)

Code

of Civil Procedure section 415.10 provides that a summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served.

Code

of Civil Procedure section 416.90 provides that a summons may be served “on a

person not otherwise specified...by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process."

Although the defendant is the moving party, the burden of proof is on the plaintiff to demonstrate that there is personal jurisdiction. (Milhon v. Superior Court (1985) 169 Cal.App.3d 703, 710.) A plaintiff must establish that there is personal jurisdiction by a preponderance of the evidence. (Roy v. Superior Court (2005) 127 Cal.App.4th 337, 343.) If the plaintiff is able to meet this burden, the burden shifts to the defendant to demonstrate the exercise of jurisdiction would be unreasonable. (Buchanan v. Soto (2015) 241 Cal.App.4th 1353, 1362.)

DISCUSSION

Belhiba moves for an order quashing the Proof of Service served on November 28, 2025 and filed on February 9, 2026, pursuant to Code of Civil Procedure sections 418.10, subdivision (a)(1) and 415.10.

Pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1), a defendant must serve and file a notice of motion to quash service of summons on or before the last day of his or her time to plead, "or within any further time that the court may for good cause allow." Belhiba's motion was not filed 30 days after the service of the summons to file a responsive pleading, or 40 days if service was effectuated by substitute service. (Code Civ. Proc., § 412.20, subd. (a)(3); Code Civ. Proc., § 415.20, subd. (b).) However, Belhiba argues that service was invalid and not properly made, thus the clock to plead never started and this motion cannot be untimely.

The filing of a proof of service creates a rebuttable presumption that the service was proper, provided that the proof complies with the statutory requirements. (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441.) These proofs of service must also include the county in which the process server is registered and the process server's registration number. (CCP § 417.40; Bus. & Prof. Code §§ 22350, 22360.) Finally, the proofs of service must be filed with the court

clerk when defendants have not made a general appearance in this lawsuit. (CCP § 417.30 subd (a).)

Here, Victor Nwachie, who is not a registered California process server, signed a corresponding Proof of Summons regarding the service he effected on Belhiba. (Proof of Service of Summons, Feb. 2, 2026.) The Court finds that the proof of service is statutorily compliant as it shows the time and place where the documents were delivered to Belhiba. (Id.)

The Court concludes that Plaintiff has met her burden to show service of summons. The burden then shifts to Belhiba to argue that the exercise of jurisdiction is unreasonable.

Belhiba argues that personal service was not properly executed pursuant to Code of Civil Procedure section 415.10 because she was at her home in La Marsa, Tunisia on November 28, 2025, the date of alleged service. (Mot., at p. 8; Belhiba Decl., ¶¶ 5-6.) Belhiba further alleges that she has never resided at the Property and that she departed the United States on May 3, 2024. (Mot., at p. 8; Belhiba Decl., ¶¶ 4-9, Exhs. A, D.) She states that she first learned of the lawsuit in late May or early June of 2026, through her ex-husband and co-defendant Mohammed S. Ben Lamine. (Belhiba Decl., ¶ 7.)

Belhiba puts forth four pieces of evidence to corroborate her allegation that she was physically present at her La Marsa home on November 28, 2025: (1) airline reservation confirmation email from Air France depicting a return flight from the United States to Tunisia on May 3, 2024; (2) her United States' tourist visa confirming her status as a foreign visitor; (3) a Tunisian utility bill for February through March 2026 confirming her current residence at Mediteranee Apt. #A18, Cite Khalil, La Marsa 2070, Tunisia; and (4) passport entry and exit stamps from 2024 indicating a departure from Tunisia on January 17, 2024, return to Tunisia on May 4, 2024, and another entry into Tunisia on December 23, 2024. (Mot., at pp. 8-9; Belhiba Decl., ¶¶ 3-9, Exhs. A-D.)

Lastly, Belhiba alleges that the credibility of the proof of service is undermined because the process server lists the same business address as Plaintiff's counsel and he is not a registered process server. (Mot., at p. 9.) However, as Belhiba herself noted, the use of an unregistered process server does not poison service in California if

the individual is over 18 years of age and is not a party to the case, as is seen here.

While the Court acknowledges that Belhiba is a citizen of Tunisia and her primary residence is likely the property located at Mediteranee Apt. #A18, Cite Khalil, La Marsa 2070, Tunisia, the evidence is not sufficient to corroborate Belhiba's declaration testimony.

The evidence does not establish that Belhiba was in Tunisia on November 28, 2025. Belhiba's American visa expires in 2033, meaning she could have been at the Property or in the United States on the date of alleged service. In addition, the provided passport entries and exits show that she entered and left Tunisia on the indicated dates, not whether Belhiba was in the United States on November 28, 2025. Lastly, the utility bill covers the period of February through March 2026, which does not speak to her presence at the residence in November 2025; the evidence would be more persuasive if the utility bill was for the month of November 2025. Belhiba also fails to acknowledge the lien history on the Property, indicating a recorded lien on June 8, 2017, for \$280,000 with Belhiba as the lender. (Compl., Exh. A.)

The court finds that resolution of the motion may depend on a determination of the credibility of the declarants. Accordingly, The Court sets an evidentiary hearing on this motion on August 21, 2026 at 8:30 a.m. The parties to this motion are ordered to produce for cross-examination and possibly further testimony at that hearing Process Server Nwochie and Defendant Belhiba.

CONCLUSION AND ORDER

Based on the foregoing, the Court CONTINUES Defendant Belhiba's motions to quash service of summons to August 21, 2026 at 8:30 a.m., at which time the Court will hold an evidentiary hearing.

IT IS SO ORDERED.

DATED: July 22, 2026 _____

Edward
B. Moreton, Jr.

Judge

of the Superior Court